



CHAPTER 34.

An Act to create certain offences in connection with the supply and use of motor spirit, and for purposes connected therewith. [28th May 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Every person who carries on the business of supplying motor spirit by retail shall cause all pumps used for the purpose of such supply to be marked in the prescribed manner either with the word "Commercial" or with the word "Private," and if any such person supplies motor spirit by retail from a pump which is not so marked he shall be guilty of an offence. Offences by
retailers of
motor spirit.

(2) If any such person as aforesaid—

- (a) has in any such pump which is not marked with the word "Commercial" as aforesaid motor spirit which contains any of the prescribed ingredients (hereafter in this Act referred to as "commercial petrol"); or
- (b) supplies commercial petrol into the tank of a motor vehicle of such class or description as may be prescribed (hereafter in this Act referred to as a "private motor vehicle");

he shall be guilty of an offence:

Provided that it shall be a defence—

- (i) for any person charged with the offence mentioned in paragraph (a) hereof to prove that the commercial petrol was put into the pump without his consent

or connivance or without his knowing that it was commercial petrol, and that he exercised all reasonable diligence to prevent the petrol being put into the pump, and, if he afterwards discovered its presence in the pump, that he forthwith took all reasonable steps to secure the removal of the petrol or the marking of the pump with the word "Commercial";

- (ii) for any person charged with the offence mentioned in paragraph (b) hereof to prove that the commercial petrol was supplied without his consent or connivance and that he exercised all reasonable diligence to prevent such supply or to prove that the person who put the petrol into the tank of the vehicle (whether it was the person charged or another person) acted in the reasonable belief that it was not a private motor vehicle.

Offences by
private
motorists.

2.—(1) If at any time commercial petrol is present in the tank of a private motor vehicle, the owner of the vehicle and the person (if he is a different person) then in charge of the vehicle shall each be guilty of an offence:

Provided that it shall be a defence for any person charged with such an offence to prove—

- (a) that he was not present or in charge of the vehicle when the petrol was put into the tank, and that it was put into the tank without his consent or connivance; or
- (b) that he was present or in charge of the vehicle when the petrol was put into the tank, but that he did not know that it was commercial petrol and did not neglect to take any step which in the circumstances he might reasonably have been expected to take to prevent such petrol being put into the tank.

(2) If any person acquires any commercial petrol for use in a private motor vehicle, he shall be guilty of an offence:

Provided that it shall be a defence for any person charged with such an offence to prove—

- (a) that the petrol was acquired without his knowing that it was commercial petrol; and
- (b) that he did not neglect to take any step which in the circumstances he might reasonably have been expected to take to prevent the acquisition of the petrol.

3.—(1) If any person—

Other
offences

- (a) puts commercial petrol into a pump used for the purpose of the supply by retail of motor spirit, not being a pump marked in the prescribed manner with the word "Commercial";
- (b) puts commercial petrol into the tank of a private motor vehicle in circumstances which do not make him guilty of an offence under section one of this Act;
- (c) removes from any commercial petrol any of the prescribed ingredients;
- (d) adds any ingredients to any commercial petrol with a view to neutralising, disguising, or producing any chemical change in, any of the prescribed ingredients;
- (e) adds any of the prescribed ingredients to any motor spirit; or
- (f) except in such cases and subject to such conditions as may be prescribed, adds to any motor spirit or removes from any commercial petrol any red colouring matter of a prescribed description;

he shall be guilty of an offence:

Provided that

- (i) it shall be a defence for any person charged with the offence mentioned in paragraph (b) hereof to prove that he acted in the reasonable belief that the vehicle was not a private motor vehicle; and
- (ii) anything done by a person authorised by the Minister of Fuel and Power or the Petroleum Board or done for the purposes of the enforcement of this Act or in connection with any proceedings in respect of an offence under this Act shall not constitute any such offence as is mentioned in paragraph (c), paragraph (d), paragraph (e) or paragraph (f) hereof.

(2) Where the owner or the person in charge of a private motor vehicle discovers that commercial petrol is in the tank of the vehicle he shall, notwithstanding that the circumstances afford him a good defence to a charge under section two of this Act, take steps, as soon as is reasonably practicable, to remove the petrol from the tank, and if he fails to do so, he shall be guilty of an offence.

4.—(1) If any person who carries on the business of supplying motor spirit by retail is convicted of the offence mentioned in paragraph (a) of subsection (2) of section one of this Act, then, subject as hereinafter provided, he shall not, for a period of twelve months after the conviction, carry on at

Disqualifica-
tion of retail
dealers for
twelve months
after
conviction.

the premises where the offence occurred the business of acquiring and selling motor spirit, or be concerned in any manner whatsoever, whether directly or indirectly, in the carrying on of such a business at those premises, and the court by which he was convicted may order that any motor spirit at those premises belonging to that person shall be forfeited to the Crown.

(2) If any such person as aforesaid is convicted of the offence mentioned in paragraph (b) of subsection (2) of section one of this Act, then, subject as hereinafter provided, he shall not, for a period of twelve months after the conviction, carry on at the premises where the offence occurred the business of acquiring and selling commercial petrol, or be concerned in any manner whatsoever, whether directly or indirectly, in the carrying on of such a business at those premises, and the court by which he was convicted may order that any commercial petrol at those premises belonging to that person shall be forfeited to the Crown.

(3) If any such person as aforesaid is convicted of the offence mentioned in paragraph (c) or the offence mentioned in paragraph (d) of section three of this Act, or of aiding, abetting, counselling or procuring the commission of such an offence, then, subject as hereinafter provided, he shall not, for a period of twelve months after the conviction, carry on at any premises the business of acquiring and selling motor spirit, or be concerned in any manner whatsoever, whether directly or indirectly, in the carrying on of such a business at any premises, and the court by which he was convicted may order that any motor spirit belonging to that person shall be forfeited to the Crown.

(4) Any person who contravenes any of the preceding provisions of this section shall be guilty of an offence.

(5) The court by which any such person as aforesaid is convicted of such an offence as is mentioned in any of the first three subsections of this section, shall inform that person of the disability imposed on him by the subsection in question.

(6) Where any person gives notice of appeal against his conviction for any such offence as is mentioned in any of the first three subsections of this section, the court by which he was convicted or any court of summary jurisdiction for the same petty sessional division or place as that court or the court to which the appeal is to be made may, if it thinks fit, pending the appeal by order suspend the operation of that subsection in relation to that conviction, and, if it does so and the appeal is dismissed or abandoned, this section shall have effect as if for the references to a period of twelve months after the conviction there were substituted references to a period of twelve months

after the dismissal or abandonment of the appeal less the period (if any) between the date of the conviction and the date of the order of the court under this subsection.

For the purposes of this subsection, the bringing of proceedings before the High Court to quash a conviction by order of certiorari shall be deemed to be an appeal.

(7) Where any person would, by reason of the disability imposed by any of the first three subsections of this section, be prohibited from carrying on the business of acquiring and selling motor spirit, or acquiring and selling commercial petrol, as the case may be, at any premises, and the court by which that person was convicted is satisfied, on his application, that it is expedient in the public interest, by reason that other facilities for acquiring motor spirit or, as the case may be, commercial petrol are not available within a reasonable distance, not being less than five miles by road, of those premises, that he should be permitted to carry on the said business at those premises, the court may direct that the said disability shall not have effect or, in the case of a disability imposed under subsection (3), shall not have effect as respects those premises, and in that case the said person shall, without prejudice to the imposition of any penalty under the following provisions of this Act, forfeit the following sums:—

- (a) in a case where the disability arises under subsection (1) or subsection (3), the sum of two hundred and fifty pounds for each pump in use at or about the time of the commission of the offence for supplying motor spirit; or
- (b) if the disability arises under subsection (2), the sum of one hundred and twenty-five pounds for each pump in use at or about the time of the commission of the offence for supplying commercial petrol;

and the payment of those sums shall be enforced and they shall be applied in the same manner as a fine imposed by the court.

5.—(1) If any person, being the owner of a private motor vehicle in respect of which he holds or ought to hold a licence under section thirteen of the Finance Act, 1920, or under that section as it applies in Northern Ireland, commits an offence under section two of this Act in respect of that vehicle and is convicted of that offence, then—

Disqualifica-
tions and
special penal-
ties in respect
of offences
by private
motorists.
10 & 11 Geo. 5.
c. 18.

- (a) if the court decides that he remains the owner of the vehicle at the time of the conviction, any such licence which he holds in respect of the vehicle shall cease to have effect, and it shall not be lawful, for a period of

twelve months after the conviction, for him or for any other person to hold or obtain such a licence in respect of the vehicle; and

- (b) in any other case he shall, without prejudice to the imposition of any penalty under section eight of this Act, forfeit such sum as may be determined by the court to be equal to half the value of the vehicle, and the payment of that sum shall be enforced and the sum shall be applied in the same manner as a fine imposed by the court.

(2) If any person uses a private motor vehicle without such a licence as aforesaid during a period for which he is disqualified by the preceding subsection for holding or obtaining such a licence in respect of the vehicle, he shall be guilty of an offence under this Act and not under section thirteen of the Roads Act, 1920, or under that section as it applies in Northern Ireland.

(3) If any person, being the owner of a private motor vehicle in respect of which he holds or ought to hold such a licence as aforesaid, commits an offence under section two of this Act in respect of that vehicle and, while he remains the owner, is convicted of that offence, he shall forthwith produce to the court the registration book of that vehicle and, if the court makes a decision under paragraph (a) of subsection (1) of this section,—

- (a) he shall forthwith deliver to the court any licence which he holds under section thirteen of the Finance Act, 1920, or under that section as it applies in Northern Ireland, in respect of that vehicle;
- (b) the court shall order that particulars of the conviction and of the disqualification imposed by the said paragraph (a) shall be endorsed on that registration book, and if another registration book is issued in respect of that vehicle during the period of the disqualification, the particulars of the endorsement shall be copied on to that other registration book;
- (c) the court shall forward to the council of the county or county borough with whom the vehicle is registered any licence delivered under this subsection and send to that council particulars of the conviction and of the said disqualification, and for the purposes of section eighteen of the Finance Act, 1924, or section four of the Finance Act (Northern Ireland), 1924, the licence shall be deemed to have been surrendered by the holder thereof immediately before the conviction.

(4) If any person is convicted of an offence under section two of this Act, or of aiding, abetting, counselling or procuring the commission of such an offence,—

- (a) any licence held by him under Part I of the Road Traffic Act, 1930, or Part I of the Motor Vehicles (Traffic and Regulation) Act (Northern Ireland), 1926, as amended by any other Act of the Parliament of Northern Ireland, to drive a motor vehicle shall cease to have effect, and he shall be disqualified for holding or obtaining such a licence for a period of twelve months after the conviction; 20 & 21 Geo. 5.
c. 43.
- (b) he shall forthwith after the conviction deliver any such licence to the court, and the court shall forward the licence and send particulars of the conviction and disqualification to the council of the county or county borough by whom the licence was granted; and
- (c) the court shall, if not required to do so by the last preceding paragraph, send such particulars to the council of the county or county borough in which the convicted person resides.

(5) If any person who is disqualified under the last preceding subsection for holding or obtaining such a licence as aforesaid applies for or obtains another such licence while he is so disqualified, he shall be guilty of an offence and any licence obtained by him while so disqualified shall be of no effect, and if any person while he is so disqualified drives a motor vehicle on a road, he shall be guilty of an offence under this Act and not under section four of the Road Traffic Act, 1930, or under section three of the Motor Vehicles (Traffic and Regulation) Act (Northern Ireland), 1926.

(6) Where any person is, in consequence of his conviction for an offence, disqualified under this section for holding or obtaining a licence in respect of a private motor vehicle or for holding or obtaining a licence to drive a motor vehicle, the court by which he was convicted shall inform him of that disqualification.

(7) Any person who fails to comply with any requirement of this section as to the delivery of a licence or the production of a registration book to the court shall be guilty of an offence.

(8) Subsections (1) and (3) of this section shall not apply in relation to the conviction of any person for any offence unless either—

- (a) within twenty-eight days of the commission of the offence, notice was given to that person warning him

that the question of prosecuting him for an offence under section two of this Act would be taken into consideration; or

- (b) within three months of the commission of the offence a summons for the offence was served on that person.

Provisions as
to appeals.

6.—(1) Where any person gives notice of appeal against his conviction for an offence under section two of this Act, or of aiding, abetting, counselling or procuring the commission of such an offence, the court by which he was convicted, or any court of summary jurisdiction for the same petty sessional division or place as that court or the court to which the appeal is to be made may, if it thinks fit, by order provide for suspending the operation (so far as applicable) of paragraph (a) of subsection (1), subsection (3) and subsection (4) of the last preceding section in relation to that conviction and for requiring the return to that person of any licence delivered by him to the court by which he was convicted and for cancelling any thing done or deemed to have been done under any of the said provisions.

(2) Where an order is made under the last preceding subsection and the appeal is finally dismissed or is abandoned, a court of summary jurisdiction for the same petty sessional division or place as the court by which the said person was convicted, or any justice of the peace acting for that petty sessional division or place, shall, on the application of the prosecutor, issue a summons or, in default of appearance, a warrant requiring or compelling that person to appear before a court of summary jurisdiction for that petty sessional division or place, and thereupon—

- (a) if the order suspended the operation of paragraph (a) of subsection (1) of the last preceding section, that subsection and subsection (3) of that section shall have effect as if the said person had just been convicted by the court before which he appears; and
- (b) subsection (4) and subsection (6) of the last preceding section shall in any case have effect as if he had just been convicted by the court aforesaid:

Provided that the period of any disqualification imposed by the said paragraph (a) or the said subsection (4) shall be reduced by the period (if any) between the date of the conviction and the date of the order made under the last preceding subsection.

(3) For the purposes of this section, the bringing of proceedings before the High Court to quash a conviction by order of certiorari shall be deemed to be an appeal.

(4) Any person who forfeits a sum under paragraph (b) of subsection (1) of the last preceding section may appeal against the determination of the amount to be forfeited in like manner as against the conviction.

7.—(1) Any person upon whom a disability is imposed by any of the first three subsections of section four of this Act or a disqualification is imposed by subsection (1) or subsection (4) of section five of this Act may, if the disability or disqualification has been in operation for a period of not less than six months, apply to a court of summary jurisdiction for the same petty sessional division or place as the court by which he was convicted to remove the disability or disqualification, and on any such application the court may, if having regard to the circumstances at the time of the application, the court thinks there is any good reason for shortening the term of the disability or disqualification, by order remove the disability or disqualification as from such date as may be specified in the order.

Power to
remove
disability, and
disqualifica-
tion.

(2) Where a disqualification imposed by subsection (1) of section five of this Act in respect of a motor vehicle is removed under this section, the court shall order that particulars of the removal shall be endorsed on the registration book of the vehicle, and shall send particulars of the removal to the council of the county or county borough with whom the vehicle is registered.

(3) Where the court removes the disqualification imposed by subsection (4) of section five of this Act, the court shall send particulars of the removal to any council of a county or county borough to whom particulars of the disqualification were sent, and any such council to whom a licence held by the disqualified person was forwarded under the said subsection (4) shall, on a demand in writing by the holder, return the licence to him, and if any part of the period for which the licence was issued remains unexpired, it shall have effect for that part of the period.

8.—(1) Any person who is guilty of—

Penalties.

(a) an offence under section one or section two of this Act;

(b) an offence under section three of this Act except an offence mentioned in paragraph (c) or (d) of that section;

(c) an offence under subsection (7) of section five of this Act; or

(d) an offence under section ten of this Act;

shall be liable on summary conviction to a fine not exceeding five hundred pounds or to imprisonment for a term not

exceeding three months or to both such fine and such imprisonment.

(2) Any person who is guilty of any offence under this Act, except an offence to which the preceding subsection applies, shall be liable—

(a) on summary conviction, to a fine not exceeding five hundred pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment; or

(b) on conviction on indictment, to a fine not exceeding one thousand pounds or to imprisonment for a term not exceeding two years or to both such fine and such imprisonment.

(3) If the person convicted on indictment of any offence under this Act is a body corporate, the amount of the fine that may be imposed on that body corporate in respect of the offence shall not be limited, and the body corporate shall be liable to a fine of such amount as the court thinks just.

(4) If the person convicted of an offence under any provision of this Act is a body corporate, every person who at the time of the commission of the offence was a director, general manager, secretary or other similar officer of the body corporate, or was purporting to act in any such capacity, shall be deemed to be guilty of that offence unless he proves that the offence was committed without his consent or connivance and that he exercised all such diligence to prevent the commission of the offence as he ought to have exercised having regard to the nature of his functions in that capacity and to all the circumstances; and if the offence is one to which any provision of section four of this Act applies, he shall be deemed for the purposes of that provision to have been carrying on at the time of the commission of the offence the business of supplying motor spirit by retail at the premises where the offence occurred.

In this subsection, the expression "director", in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by the members thereof, means a member of that body.

**Institution of
proceedings.**

9. Proceedings for an offence under this Act, except subsection (4) of the last preceding section, shall not be instituted in England and Wales except by a constable or by or with the consent of the Minister of Fuel and Power or the Director of Public Prosecutions, and proceedings for an offence under

the said subsection (4) shall not be instituted except by or with the consent of the Minister of Fuel and Power or the Director of Public Prosecutions.

10.—(1) Any constable authorised by an officer of police of a rank not lower than that of superintendent and any person authorised by the Minister of Fuel and Power shall have a right, on producing, if so required, a duly authenticated document showing his authority, to enter at all reasonable hours any premises, other than premises used for the purposes of a private dwelling, for the purpose of ascertaining whether an offence under this Act is being or has been committed on or in connection with the premises or in connection with any motor vehicle or motor spirit on the premises.

Power of entry
and taking of
samples.

(2) Any constable may, and any person authorised by the Minister of Fuel and Power as aforesaid, on producing, if so required, a duly authenticated document showing his authority, may, take samples of any motor spirit which is on premises which he has a right to enter under this section or is in a motor vehicle in any public place.

(3) Where a sample is taken by any person in the exercise of powers under this section, then—

- (a) if the sample is taken from a motor vehicle, he shall if practicable take it in the presence of the owner or person for the time being in charge of the vehicle;
- (b) if the sample is taken on premises which he has a right to enter under this section but not from a motor vehicle, he shall if practicable take it in the presence of the occupier of the premises or the person for the time being in charge thereof;

and shall, in either case, on taking the sample, then and there divide it into three parts, each part to be marked and sealed or fastened up, and shall—

- (i) deliver one part to the owner or person in charge of the vehicle or, as the case may be, the occupier or person in charge of the premises, if he so requires it;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have an analysis made, submit one part to an authorised analyst.

(4) Where it is not practicable to comply with the requirements of paragraph (a) or paragraph (b) of the last preceding subsection in taking a sample, notice shall be served in the prescribed manner on the owner or person in charge of the vehicle or, as the case may be, the occupier of the premises or the person for the time being in charge thereof informing him that the sample has been taken and that one part thereof is available for delivery to him, if he requires it, at such time and place as may be specified in the notice.

(5) Where the result of an analysis of a sample taken under this section is given in evidence in any proceedings in respect of an offence under this Act, the part of the sample retained for future comparison shall be produced at the hearing.

(6) The result of an analysis of a sample taken under this section shall not be admissible as evidence unless the requirements of the three last preceding subsections have been complied with in relation thereto.

(7) Any person who obstructs any person exercising powers under this section shall be guilty of an offence.

Analyst's
certificate to
be evidence.

11. In any proceedings in respect of an offence under this Act, a certificate purporting to be signed by an authorised analyst and certifying the ingredients of any such sample of motor spirit as may be specified in the certificate shall, subject as hereinafter provided, be evidence of the facts therein stated:

Provided that such a certificate shall not be admissible as evidence—

- (a) unless a copy thereof has, not less than seven days before the hearing or trial, been served in the prescribed manner on the person charged with the offence; or
- (b) if that person, not less than three days before the hearing or trial or within such further time as the court may in special circumstances allow, serves notice in the prescribed manner and form on the prosecutor requiring the attendance at the hearing or trial of the person by whom the analysis was made.

Regulations.

12.—(1) The Minister of Fuel and Power may by statutory instrument make regulations prescribing anything required by any provision of this Act to be prescribed.

(2) Regulations made for the purpose of defining the vehicles which are to be private motor vehicles for the purposes of this Act may provide for excluding therefrom any vehicle of a prescribed class or description if and so long as the prescribed conditions are complied with in respect of that vehicle.

(3) Any statutory instrument made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Interpretation.

13.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“ authorised analyst ” means the Government Chemist,

any chemist authorised by the Minister of Fuel and Power to make analyses for the purposes of this Act, or any other person appointed under section sixty-six of the Food and Drugs Act, 1938, or section fifteen of the Food and Drugs (Adulteration) Act, 1928, as a public analyst or deputy public analyst; 1 & 2 Geo. 6.
c. 56.
8 & 9 Geo. 5.
c. 31.

“ motor spirit ” has such meaning as may be prescribed;

“ motor vehicle ” means a mechanically - propelled vehicle constructed or adapted for use on roads;

“ owner,” in relation to a private motor vehicle, means the person in whose name the vehicle is for the time being registered under the Roads Act, 1920, except that, if that person has sold or otherwise disposed of the vehicle and the change of ownership has been notified in writing to the council of the county or county borough with whom the vehicle is registered, the person so notified as the owner of the vehicle or, if there has been more than one change of ownership, the last person so notified shall be deemed to be the owner;

“ prescribed ” means prescribed by regulations made by the Minister of Fuel and Power under this Act;

“ pump ” includes the tank or other receptacle from which motor spirit is drawn by the pump.

(2) References in this Act to the conviction of a person shall be construed as including references to a person being found or pleading guilty or admitting the truth of the information or to the court deciding (for the purposes of subsection (1) of section one of the Probation of Offenders Act, 1907) that the charge has been proved. 7 Edw. 7. c. 18.

(3) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment.

14.—(1) The provisions of this section shall have effect for the purposes of the application of this Act to Scotland. Application
to Scotland.

(2) For any reference to a county borough there shall be substituted a reference to a burgh containing within its boundaries as ascertained, fixed and determined for police purposes, a population according to the census for the time being last taken of or exceeding fifty thousand.

(3) References to a court of summary jurisdiction for, or to a justice of the peace acting for, the same petty sessional division or place as the court by which a person was convicted shall be omitted and for any such reference in subsection (2)

of section six or in section seven of this Act there shall be substituted a reference to the court by which the person was convicted.

(4) For the expression "summons" there shall be substituted,

(a) in subsection (8) of section five of this Act, the expression "complaint," and

(b) in subsection (2) of section six, the expression "citation."

(5) Any person who aids, abets, counsels or procures the commission of any offence against this Act shall be guilty of an offence and shall be liable on conviction thereof to the same punishment as might be imposed on conviction of the first-mentioned offence.

Application to
Northern
Ireland.

15.—(1) This Act shall extend to Northern Ireland with the modifications specified in the succeeding provisions of this section:

Provided that nothing in this Act shall restrict the powers of the Parliament of Northern Ireland to make laws with respect to any matter with respect to which that Parliament has power to make laws, and any laws made by that Parliament with respect to any such matters shall have effect notwithstanding anything in this Act or in any instrument made under this Act.

(2) References to a court of summary jurisdiction shall be construed as references to a court of summary jurisdiction constituted in accordance with the provisions of the Summary Jurisdiction and Criminal Justice Act (Northern Ireland), 1935, as amended by any Act, whether past or future, of the Parliament of Northern Ireland; references to summary conviction shall be construed as references to conviction by a court so constituted; references to a petty sessional division shall be construed as references to a petty sessions district.

(3) For subsection (3) of section six the following subsection shall be substituted:—

"(3) For the purposes of this section, the bringing of proceedings before the High Court of Justice in Northern Ireland by writ of certiorari to quash a conviction or by way of case stated by a court of summary jurisdiction under section ten of the Criminal Justice Act (Northern Ireland), 1945 shall be deemed to be an appeal."

(4) The references in section nine and section ten to a constable shall be construed as references to any officer or member of the Royal Ulster Constabulary, the reference in

section ten to an officer of police not below the rank of superintendent shall be construed as a reference to an officer of the Royal Ulster Constabulary not below the rank of district inspector, and the references in section nine to England and Wales and to the Director of Public Prosecutions shall be construed as references to Northern Ireland and to the Attorney-General for Northern Ireland, respectively.

(5) The definition of " authorised analyst " in section thirteen shall be construed as including the person for the time being appointed under section two of the Administrative Provisions Act (Northern Ireland), 1928, to be the Government Chemist for Northern Ireland and as including any Public Analyst appointed under the Sale of Food and Drugs Acts (Northern Ireland), 1875 to 1939, and the reference in that section to the Roads Act, 1920, shall be construed as a reference to that Act as it applies in Northern Ireland.

16.—(1) This Act may be cited as the Motor Spirit (Regulation) Act, 1948. Short title,
extent and
duration.

(2) This Act shall come into operation on the first day of June, nineteen hundred and forty-eight, and shall continue in force until such date as His Majesty may by Order in Council appoint, and shall then expire, subject to such provisions as may be contained in the Order as respects things previously done or omitted to be done.